VotanicXR SDK for Unity

Software Licence Agreement

Version: 2026-10-06

Scope: This Agreement applies to SDK 2.0 use. Earlier SDK 1.x use and existing entitlements are treated under Sections 14.3–14.5.

VOTANIC Limited, a company incorporated in Hong Kong ("**VOTANIC**", "**we**", "**us**", or "**our**"), the licensor, makes the VotanicXR SDK for Unity ("**SDK**") available to you on the terms of this Software Licence Agreement ("**Agreement**"). The SDK is licensed, not sold. By selecting "I accept" in the SDK's acceptance prompt, or by downloading, installing, or using the SDK, you agree to be bound by this Agreement. If you do not agree, do not install or use the SDK. This Agreement governs SDK 2.0 use; earlier SDK 1.x use is addressed in Section 14.3.

1. Definitions

1.1 **Defined Terms.** In this Agreement:

(a) "**SDK**" means the VotanicXR SDK for Unity supplied by VOTANIC, including APIs, libraries, editor tools, samples, documentation, licence-management components, and authorized updates. It excludes Unity and separately licensed VotanicXR Player.

(b) "**Developer Application**" means an application created using the SDK, including original code and content and permitted embedded Redistributable Components, but not the SDK or Player itself.

(c) "**Redistributable Components**" means components that the SDK automatically includes in a Developer Application build when the application is built in accordance with the documentation, and any other components expressly designated by VOTANIC as redistributable. Editor tools, development utilities, source code, licence keys, and Player are excluded unless expressly designated otherwise.

(d) "**Authorized Device**" means a development device authorized by VOTANIC for SDK use. "**Authorized User**" means a person permitted to use the SDK under the Licensee's entitlement.

(e) "**Licence Period**" means the period stated when the licence is issued or extended. "**Issuance Record**" means VOTANIC's written licence confirmation, order form, approved quotation, email approval, or other written record of applicable licence conditions.

(f) "**CAVE System**" means a supported immersive projection-based extended-reality system. "**VotanicXR Player**" or "**Player**" means the separately licensed VOTANIC runtime required for applicable CAVE operation.

(g) "**End User**" means an application user who does not receive SDK access under your licence. "**Licensee**", "**you**", and "**your**" mean the individual or organization identified under Section 2.

1.2 **Licence Types and Construction.** The Licence Types are Evaluation, Academic and Non-Profit, and Professional, as described in Section 3. Headings do not affect interpretation; "including" is non-exhaustive; singular includes plural. Distribution includes supplying application copies to others; deployment means installation or availability for operational use, distinct from permitted evaluation testing.

2. Acceptance and Eligibility

2.1 **Individual Acceptance.** If you accept for yourself, you are the Licensee and must have the age and legal capacity required to enter into this Agreement.

2.2 **Organizational Acceptance.** If you accept for an organization, you represent that you have authority to bind it. The organization is the Licensee; accepting for it does not, by itself, make you a co-Licensee

or personally responsible for its contractual obligations. A person without authority must arrange acceptance by an authorized representative.

2.3 **Authorized Users.** An organization must communicate applicable restrictions and take reasonable steps to ensure Authorized User compliance. Users receive no separate licence or activation merely through organizational affiliation. Contractor access requires VOTANIC authorization and appropriate compliance and confidentiality obligations.

2.4 **Minors.** A minor lacking contractual capacity may use the SDK only under a licence accepted by an adult or institution acting through an authorized adult. The Licensee must provide appropriate supervision and obtain legally required consents; a minor's click-through alone creates no independent licence.

2.5 **Acceptance Records.** VOTANIC may record the agreement version, acceptance time, and associated licence reference, subject to Section 8 and applicable law. Acceptance takes effect when this Agreement is first accepted; it does not itself determine the Licence Period.

2.6 **Identification of Licensee.** Where a licence is issued, the Licensee is the individual or organization identified in the applicable Issuance Record. Before a licence is issued, including Evaluation use without a licence key, the Licensee is the person accepting this Agreement or the organization on whose behalf that person accepts under Section 2.2.

3. Licence Grant and Licence Types

3.1 **Common Grant.** Subject to compliance and payment of applicable fees, VOTANIC grants a limited, non-exclusive, non-transferable licence during the Licence Period for the purposes below. Unless expressly authorized otherwise, each licence permits SDK installation and use on one Authorized Device owned or lawfully controlled by you. All ungranted rights are reserved. A licence key or activation authorization establishes only the entitlement actually issued, not undisclosed conditions.

3.2 **Evaluation Licence.** You may internally evaluate and test the SDK's functionality and performance, creating and running test applications only as necessary for that evaluation. This does not permit production or customer-project development, builds for distribution, application supply or deployment to third parties, customer services, or commercial exploitation. Test builds must remain internal; evaluation notices and restrictions must be preserved. External testing, including on a client's CAVE system without a valid Professional Licence, requires prior written VOTANIC authorization limited to the approved scope and period. No repeat evaluation entitlement arises automatically.

3.3 **Academic and Non-Profit Licence.** VOTANIC may issue this licence to approved educational institutions, affiliated individuals, NGOs, and other non-profit organizations, with evidence of eligibility where required. Within the approved organization, unit, or programme:

(a) academic users may undertake internal teaching, learning, coursework, evaluation, and non-sponsored academic research;

(b) approved non-profit users may undertake internal learning, evaluation, and non-commercial operational activities; and

(c) both may build and internally deploy applications for those purposes and for internal operations that do not generate income through application sales, licensing, paid services, or income-generating third-party offerings.

Ordinary tuition, general funding, cost savings, or efficiency alone do not make otherwise permitted internal activities commercial. Without written approval, this licence excludes sponsored or industry-funded research, consultancy, contract research, external-client work, commercial development or distribution, paid external services, and collaboration outside the approved scope. It does not grant public distribution or external beneficiary-facing deployment. Organizational Licensees must designate an appropriate administrator, maintain reasonable activation records, withdraw unauthorized access, and

notify VOTANIC of material loss of eligibility. Approval for a unit does not extend automatically to other units or affiliated bodies.

3.4 **Professional Licence.** You may develop and test Developer Applications, create release builds, and distribute and commercially supply them and related services to customers and other third parties. This includes reproduction of embedded Redistributable Components and End User permission under Section 6, but not standalone SDK or Player distribution. Applications must provide substantive functionality beyond making SDK components available for others to develop with.

3.5 **Issuance and Exceptions.** The Licence Type, Licence Period, activations, and expressly agreed conditions are established at issuance; features may vary. Additional activities or restrictions may be agreed in writing and modify only their stated scope. Without express additional restrictions, the standard Professional grant applies. Pricing, discounts, quantities, and partner arrangements may remain outside this Agreement; no standard royalty schedule, customer quota, or per-application deployment fee is established here, and separately agreed fees are not waived. Possession of application files or a licence key does not expand the grant.

4. Activation and Technical Requirements

4.1 **Activation and Licence Keys.** VOTANIC may use activation and validation measures to administer entitlements and functionality. Device changes or reactivation require authorization; installation or use on a separate automated build device requires authorization for that device. Licence keys must be protected against unauthorized copying, sharing, pooling, or publication, and known material compromise reported promptly.

4.2 **Validation Failure.** Failed validation may result in restricted SDK functionality or corrective action; it does not, by itself, establish misconduct or authorize interference with deployments protected by Sections 13.3 and 13.5.

4.3 **Dependencies and Compatibility.** The SDK requires a supported Unity environment and is not standalone software. You must obtain necessary Unity and other dependency licences and evaluate the documented hardware, software, and driver requirements. Compatibility with every version, device, or third-party package is not promised.

4.4 **Licence Verification.** On reasonable written request, and no more than once in any twelve-month period unless VOTANIC reasonably suspects non-compliance, you will provide reasonable written information identifying the Authorized Devices and Authorized Users using the SDK and the Licence Type relied on. VOTANIC will treat that information as confidential and use it only to verify licence compliance.

5. Restrictions and Acceptable Use

5.1 **General Restrictions.** Except as expressly authorized here, by VOTANIC in writing, by applicable component terms, or by non-excludable law, you must not:

(a) redistribute, rent, lend, sell, or sublicense the SDK, documentation, or non-redistributable components;

(b) reverse engineer, decompile, disassemble, decrypt, or derive source code or protected internal structures;

(c) modify proprietary components, except samples or materials expressly supplied for customization;

(d) circumvent activation, exceed authorized use, manipulate licence keys, or remove proprietary or evaluation notices;

(e) use SDK components or VOTANIC confidential information to create a competing SDK or development platform, or use SDK components or documentation to train or improve AI models without permission;

(f) extract embedded components for standalone use or supply an application as a means of providing the SDK to others;

(g) publish SDK benchmarks or comparative performance results without prior written consent, except bona fide results of permitted academic research under Section 9.4; or

(h) assist another person to do these things.

5.2 **Permitted Integration and Mandatory Rights.** Authorized integration of your code through documented APIs and permitted testing are not prohibited; the purpose remains governed by Section 3. Non-excludable statutory and open-source rights are preserved, and their exercise is not conditioned on consent where law prohibits that condition.

5.3 **Acceptable Use and High-Impact Applications.** You must not use the SDK or applications for unlawful content or conduct, including child sexual abuse or exploitation, unlawful weapons or attack instructions, incitement to violence or unlawful discrimination, fraud or deceptive impersonation, intellectual-property infringement, privacy violations, or unlawful coercion, humiliation, or harassment of vulnerable persons. You must not present an application as validated for medical, safety-critical, legal, or other high-impact use without appropriate independent validation and required approvals; no such certification is supplied with the SDK.

6. Developer Applications and VotanicXR Player

6.1 **Application Ownership.** You retain rights in original code, content, student work, and research results, subject to VOTANIC and third-party rights. Application creation does not transfer ownership to VOTANIC, and owning code does not itself authorize distribution of embedded components.

6.2 **Embedding and Recipients.** For builds or deployments permitted by Section 3, you may embed Redistributable Components in the supplied or authorized form as necessary for the application. Where external distribution is permitted, recipients may use those components solely within the application—an express limited exception to restrictions on sublicensing SDK rights. Preserve required notices and communicate restrictions on component extraction and standalone redistribution. Recipients acquire no SDK development, ownership, or Player rights from your application licence.

6.3 **Customer Agreements.** You are responsible for rights in supplied assets and for customer and End User terms. This Agreement does not decide ownership transfers between you and customers, and VOTANIC is not a party to your application agreements.

6.4 **CAVE Runtime.** CAVE operation requires a valid Player entitlement for the relevant system. Existing VOTANIC CAVE customers may hold it under their system or licensing arrangements; other CAVE users must acquire it. This Agreement grants no Player licence or redistribution right and does not amend existing Player entitlements. A customer's runtime entitlement does not authorize an Evaluation licensee's external testing; Professional rights do not replace runtime licensing.

6.5 **PC and Headsets.** No Player licence is required merely because an ordinary PC or VR-headset application uses the SDK, where it does not use the separately licensed CAVE runtime.

6.6 **VOTANIC Use of Applications.** No general right to access, publish, market, distribute, or exploit your application or content is granted to VOTANIC. Section 8 governs limited support submissions; other use requires separately agreed permission.

7. Safety and Operator Responsibilities

7.1 **Application Design and Safety Information.** You are responsible for application design, content, functionality, testing, lawfulness, and claims. Assess foreseeable risks and provide appropriate safety, accessibility, age-suitability, and operating information, including relevant warnings about photosensitive responses, motion sickness, disorientation, fatigue, eye strain, sound, movement, and collision hazards.

7.2 **Safety Controls.** Where appropriate, provide usable pause, exit, or operator-stop mechanisms and instructions for discomfort or unsafe conditions. Duties are proportionate to the application, not a guarantee of universal suitability or absence of risk.

7.3 **Developer and Operator Responsibilities.** When supplying another operator, provide reasonable information about setup, limitations, supervision, calibration dependencies, and participant warnings. When operating yourself, take reasonable precautions for the physical environment, hardware, supervision, sessions, and emergency arrangements within your control. This section does not make a developer responsible solely for site conditions beyond their control.

7.4 **Notices, Consents, and End User Rights.** Obtain legally required notices and consents for your application and participants, including minors and personal, biometric, voice, motion, or spatial data. Acceptance of this SDK Agreement is not participant consent. End Users receive no SDK contractual warranty from VOTANIC here; mandatory law and separately agreed rights remain unaffected.

8. Data, Privacy, and Support Submissions

8.1 **Licence Validation and Diagnostics.** During activation, the SDK transmits device-related information and local time information to the licence server for activation, entitlement validation, and prevention of licence misuse. VOTANIC may use third-party service providers to operate the licensing system. The SDK does not automatically transmit diagnostic records or build-process records, and embedded SDK components do not transmit information when a built Developer Application runs. This statement concerns the SDK components only; it does not describe data processing independently introduced by your application, third-party services, or the separately licensed Player. VOTANIC retains activation information only for as long as reasonably necessary to administer licence entitlements, prevent or investigate licence misuse, resolve disputes, and meet applicable legal obligations. When no longer required for those purposes, the information will be deleted or anonymized.

8.2 **Application Processing.** You are responsible for lawful data processing introduced by your application and third-party services you select, including accounts, credentials, charges, provider terms, and review of inputs and outputs. This does not transfer VOTANIC's own statutory obligations to you or assert unverified SDK functionality. Privacy enquiries may be sent to enquiry@votanic.com; applicable data-protection rights remain unaffected. Subject to applicable law, you may request access to or correction of personal data held by VOTANIC about you by contacting enquiry@votanic.com.

8.3 **Support Submissions.** You may voluntarily provide files, code, assets, logs, or configurations for support, including by giving VOTANIC access to your own shared storage or sending material or access links through electronic communications. With your authorization, VOTANIC may download project materials for troubleshooting or remotely access your computer to debug them there without downloading the project. Except for future testing and benchmarking expressly authorized under Section 8.4, any such access, reproduction, running, inspection, or modification is permitted only as reasonably necessary for the authorized support task and improvement of the relevant defect's handling—not for marketing, public distribution, or AI training. Authorization for a support session does not grant general or continuing access to your computer. Remove unnecessary credentials, personal data, and confidential or third-party material and ensure you have authority to provide it. Sharing through a third-party service remains subject to that service's applicable terms and does not create a support obligation under Section 10.3.

8.4 **Support-Material Retention and Separately Authorized Testing.** VOTANIC will delete downloaded project copies once examination for the authorized support task is complete, unless you expressly permit their retention and use for future testing and benchmarking, or retention is required by law. Any permission for future testing or benchmarking must separately specify its scope; providing a project for support alone does not grant that permission. Such permission does not, by itself, authorize publication of the project or benchmark results, marketing use, or AI training. Copies retained solely as required by law will not be used for unrelated testing or benchmarking.

9. Intellectual Property, Feedback, and Confidentiality

9.1 **IP Ownership and Trademarks.** VOTANIC and its licensors retain SDK and documentation rights; application rights remain as stated in Section 6. No trademark licence is granted, except an accurate neutral reference to development using VotanicXR. Do not imply certification, partnership, sponsorship, or endorsement without permission.

9.2 **Feedback Licence.** Feedback is voluntary. You grant VOTANIC a perpetual, irrevocable, worldwide, royalty-free, transferable, sublicensable licence to exploit feedback without compensation or attribution. Feedback does not include application code, research results, student work, datasets, or confidential material merely because they accompany comments. Separate permission or Sections 8.3–8.4 apply to those materials.

9.3 **Confidentiality.** Protect non-public VOTANIC information marked or reasonably understood as confidential with at least reasonable care. Use it only for authorized purposes and disclose it only to necessary Authorized Users with appropriate obligations. Public documentation and APIs are not confidential merely because they concern the SDK. Exclusions cover information demonstrably public without breach, lawfully known without restriction, independently developed, or lawfully obtained without restriction. Legally compelled disclosure is permitted to the required extent, with prior notice where lawful. Do not publish confidential negotiated terms without consent.

9.4 **Academic Publication.** Results of permitted academic activities may be published without approval if confidential information, licence keys, and restricted software are not disclosed. This expressly qualifies Section 5.1(g), but does not permit unrelated commercial benchmarking, application distribution, or external operation beyond approved scope. A factual software acknowledgement should be included where reasonably appropriate, subject to any separate institutional arrangement. Publication of original results survives licence expiry.

10. Third-Party Materials, Updates, and Support

10.1 **Third-Party Terms.** Unity, third-party materials, and external services are subject to their own terms. Obtain necessary licences and preserve required component notices. Open-source or third-party terms prevail only for the relevant component where conflicting and do not reduce applicable open-source rights. Missing notices do not establish unrestricted redistribution; VOTANIC's own component-distributor obligations remain unaffected.

10.2 **Updates and Compatibility.** Your licence covers versions made available and authorized under it, not every past or future release. VOTANIC may change or discontinue versions, features, integrations, and supported environments, without promising particular updates or compatibility. Such changes do not retrospectively restrict deployment permissions preserved under Sections 13.3, 13.5 and 13.8. Updates follow this Agreement unless separate terms are presented; agreement changes are governed by Section 14.

10.3 **No Support Obligation.** Unless separately agreed, VOTANIC owes no maintenance, technical support, training, installation assistance, on-site service, or service level. Voluntary assistance creates no ongoing obligation.

11. Warranty Disclaimer

11.1 **As-Is.** TO THE MAXIMUM EXTENT PERMITTED BY LAW, THE SDK, DOCUMENTATION, SAMPLES, AND VOLUNTARY ASSISTANCE ARE PROVIDED "AS IS" AND "AS AVAILABLE", WITHOUT EXPRESS, IMPLIED, OR STATUTORY WARRANTIES OR CONDITIONS, INCLUDING SATISFACTORY QUALITY, MERCHANTABILITY, FITNESS FOR PURPOSE, ACCURACY, AND NON-INFRINGEMENT.

11.2 **No Specific Performance Promise.** VOTANIC DOES NOT WARRANT UNINTERRUPTED OR ERROR-FREE OPERATION, SUITABILITY FOR YOUR REQUIREMENTS, UNIVERSAL THIRD-PARTY COMPATIBILITY, OR FITNESS OF APPLICATIONS FOR SAFETY-SENSITIVE USE. Express separately agreed warranties and non-excludable rights remain unaffected. The warranty disclaimer does not negate VOTANIC's express IP indemnity obligations under Section 12.6.

12. Liability and Indemnities

12.1 **Aggregate Cap.** Subject to Section 12.3, VOTANIC's total aggregate liability arising out of or relating to this Agreement and the SDK under a paid licence shall not exceed the greater of (a) the fees paid or payable to VOTANIC or its authorized reseller for the relevant SDK licence in the twelve (12) months immediately preceding the event giving rise to the claim, and (b) One Thousand Hong Kong Dollars (HK$1,000). CAVE hardware, separately licensed Player, and separately contracted service fees are not included in this calculation. For an Evaluation Licence or other SDK licence issued without charge, VOTANIC's total aggregate liability arising out of or relating to this Agreement and the SDK shall not exceed One Thousand Hong Kong Dollars (HK$1,000). These are aggregate limits, not limits per claim.

12.2 **Excluded Damages.** To the maximum extent permitted by law, VOTANIC excludes indirect, special, incidental, consequential, exemplary, and punitive damages and loss of profits, revenue, business, goodwill, data, or opportunity, even if advised of their possibility.

12.3 **Exceptions.** Nothing in this Agreement limits or excludes liability for death or personal injury resulting from negligence, or for fraud or fraudulent misrepresentation. The cap in Section 12.1 and exclusions in Section 12.2 do not apply to VOTANIC's liability for fraud, wilful misconduct, or gross negligence, or to the extent liability cannot lawfully be limited or excluded. This section does not amend separate Player, system, or support liability terms. The IP indemnity in Section 12.6 is included within the same cap, subject to these exceptions. The Licensee indemnity in Section 12.4 is separately uncapped. No additional exception from VOTANIC's cap or damages exclusions applies merely because a claim concerns intellectual property, including a claim outside Section 12.6. The exceptions stated above remain applicable. This does not extend the indemnity coverage in Section 12.6. In this Section, "**gross negligence**" means conduct undertaken in reckless disregard of a known and obvious risk of serious harm.

12.4 **Licensee Indemnity.** You will defend and indemnify VOTANIC and its officers, employees, and agents against third-party claims and reasonable resulting legal costs, damages, and approved settlements, but only to the extent arising from: (a) Developer Application code, content, or assets supplied by you, including infringement by those materials; (b) unlawful data processing introduced by your application; (c) your breach of SDK restrictions; or (d) unsafe or unlawful application design or operation within your control. This obligation does not cover loss attributable to VOTANIC's own misconduct or infringement covered by Section 12.6. Developing an application does not, by itself, make you responsible under this indemnity for customer-site conditions outside your control. This indemnity is uncapped and is not subject to VOTANIC's cap or damages exclusions in Sections 12.1–12.2, subject to mandatory law and any express separately agreed modification.

12.5 **Claims Procedure.** For an indemnity under this Agreement, the protected party must promptly notify the defending party, allow reasonable control of the defence, and reasonably cooperate at the

defending party's expense. Late notice relieves obligations only to the extent materially prejudicial. Settlements imposing admissions, non-monetary obligations, or uncompensated liability on the protected party require its consent, not unreasonably withheld.

12.6 **VOTANIC IP Indemnity.**

(a) For a paid Professional Licensee, VOTANIC will defend a third-party claim alleging that authorized use of VOTANIC's unmodified SDK infringes a copyright, trademark, registered design, or trade secret enforceable in Hong Kong, and pay damages finally awarded and settlements approved by VOTANIC attributable to that covered claim.

(b) This protection excludes patent claims and claims to the extent arising from Developer Application code or content supplied by you, Unity or separately licensed third-party materials, unauthorized SDK modifications, use outside the licence, or combinations with other materials where the claim would not have arisen without the combination. No protection is granted under this section to Evaluation, unpaid, or Academic and Non-Profit Licensees.

(c) You must promptly notify VOTANIC of the claim, give VOTANIC control of its defence and settlement, reasonably cooperate, and make no admission or settlement without VOTANIC's consent. The procedure in Section 12.5 also applies.

(d) VOTANIC may obtain rights for continued use, modify or replace affected components, or terminate the affected entitlement and refund prepaid licence fees pro rata for its unused Licence Period. This does not independently terminate a customer's separately licensed Player entitlement.

(e) VOTANIC's defence costs, reasonable cooperation costs payable under Section 12.5, covered damages, and settlements all count toward the same aggregate cap in Section 12.1, together with other covered VOTANIC liabilities; no separate or additional indemnity allowance is created. Section 12.2 does not exclude amounts expressly payable for a covered third-party claim under this section. The exceptions in Section 12.3 remain applicable.

13. Expiry, Suspension, and Termination

13.1 **Term and Voluntary Termination.** This Agreement applies from acceptance, with each entitlement limited to its issued Licence Period. You may terminate by ceasing SDK use and uninstalling it; refunds arise only under express terms or mandatory law.

13.2 **Ordinary Expiry.** SDK use and creation of new or modified builds cease unless renewed or separately authorized. Evaluation application use involving SDK components also ceases. Original code may be retained, but ownership alone confers no continued SDK or deployment rights. Upgrading authorizes subsequent licensed activity, not past breaches; distribution builds require valid build rights.

13.3 **Existing Professional Deployments.** Ordinary Professional expiry does not, by itself, require cessation or uninstallation of application copies lawfully built and deployed while the licence was valid, including CAVE, ordinary PC, headset, and lawful internal production deployments. Necessary embedded-component use survives for those copies. CAVE operation still requires valid Player rights; support and future compatibility are not promised.

13.4 **No Future Deployment Right.** Section 13.3 does not authorize SDK use, new or modified builds, additional distribution, or deployment of built-but-undeployed copies after expiry. Further deployment, reinstallation, or system replacement requires a valid entitlement or written authorization, subject to mandatory legal rights. Evaluation copies do not automatically acquire this protection.

13.5 **Academic/Non-Profit Expiry.** On ordinary expiry, SDK use and creation of new or modified builds must cease unless renewed or separately authorized. Developer Application copies lawfully built and deployed internally during the Licence Period may continue operating, with the necessary embedded-component permission, solely within the originally approved academic or non-profit scope while the Licensee remains eligible. This grants no new deployment, external distribution,

commercial-use, or continuing SDK-use right. The further-deployment, reinstallation and replacement conditions in Section 13.4 apply equally to these copies. CAVE operation remains subject to a valid Player entitlement; no continuing support, updates or compatibility is promised. Loss of eligibility or termination for breach is not ordinary expiry. Original results and permitted publication rights are retained.

13.6 **Breach.** Either party may terminate for material breach not cured within thirty days after notice, where capable of cure. Deliberate circumvention, unauthorized SDK distribution, serious acceptable-use misconduct, or unlawful activity need no cure period. VOTANIC may suspend affected access where reasonably necessary for security, material misuse investigation, or legal compliance. Administrative validation failure alone is not serious misconduct.

13.7 **Consequences.** Subject to surviving rights, cease affected SDK use and licence-key use, uninstall SDK copies, and return or destroy confidential material where required. Retention of original work does not extend component-use rights. Suspension or expiry of SDK rights does not itself terminate independent customer Player rights.

13.8 **Breach and Deployed Copies.** Termination for breach ends the Licensee's right to use the SDK, create new or modified builds, and make further distributions or deployments. Necessary embedded-component permissions for previously authorized, compliant deployments remain effective for customers and other permitted users not involved in the breach, within their original permitted scope. Unauthorized copies are not protected. VOTANIC may require the Licensee to cease or remediate an affected application's distribution or use where that distribution or continued use itself breaches this Agreement, including unauthorized inclusion of SDK materials or prohibited conduct, and reasonably cooperate in addressing affected deployments. This does not authorize blanket withdrawal of permissions for unrelated lawful copies, automatically revoke independent Player entitlements, establish a remote-disabling capability, or impose new contractual obligations on recipients who are not parties to this Agreement. Mandatory law and applicable separate agreements remain effective.

13.9 **Survival.** Ownership, confidentiality, feedback rights, permitted support retention, accrued obligations, disclaimers, liability, agreed indemnities, dispute resolution, and the deployment permissions preserved under Sections 13.3, 13.5 and 13.8 survive as relevant and within their stated scope. Survival of these provisions does not create SDK-use rights.

14. Changes and Transition

14.1 **Changes to This Agreement.** VOTANIC may propose revised terms and identify their version when presented. Material changes take effect on acceptance, subject to separate agreements and mandatory law; posting alone does not retrospectively amend completed deployments or accrued rights. Agreement and SDK versioning are separate.

14.2 **Declining Materially Adverse Revised Terms.** If you hold a paid SDK licence and decline materially adverse revised terms during its Licence Period, you may continue using your existing authorized SDK version under the previously accepted terms until that paid period ends. Declining the revised terms is not itself a breach. Revised terms require acceptance for renewal or for new releases offered under those terms; this does not confer rights to future features, indefinite support, or renewal on the old terms. If VOTANIC cannot reasonably continue the existing entitlement because of a legal or security requirement, you may terminate the affected entitlement and receive a pro-rata refund of unused prepaid SDK licence fees. Existing application deployments retain the protections in Section 13, and separate Player entitlements are unaffected.

14.3 **Earlier SDK Versions and SDK 2.0.** Continued use of SDK 1.x remains governed by the agreement and licence conditions previously applicable to that use, including the existing licence period. Acceptance of this Agreement is required before using SDK 2.0. Acceptance does not, by itself,

retrospectively amend rights or obligations relating to SDK 1.x or applications previously lawfully deployed, or extend an expired licence.

14.4 **Legacy Development Status.** VOTANIC has discontinued further development and updates for SDK 1.x. Updates, compatibility improvements, or support are not promised except to the extent required under an existing separate arrangement or applicable law. Continued use does not create an assurance of future Unity, operating-system, hardware, or driver compatibility.

14.5 **Existing Entitlements.** Acceptance of this Agreement alone does not change existing licence periods, paid fees, authorized device counts, or separately agreed rights. Any entitlement to obtain SDK 2.0 is determined by the applicable existing purchase or licence arrangement; this Agreement does not, by itself, require a new purchase or waive an otherwise applicable fee. Further material changes to the terms governing SDK 2.0 are addressed separately in Sections 14.1–14.2.

15. Governing Law and General Provisions

15.1 **Governing Law and Dispute Resolution.** Hong Kong law governs, subject to non-excludable protections. Disputes will be finally resolved under HKIAC Administered Arbitration Rules in force at commencement, seated in Hong Kong, in English, by one arbitrator unless agreed otherwise. Proceedings and awards are confidential except legally required disclosure, confidential professional advice, or enforcement/challenge of an award. Either party may seek urgent court relief without waiving arbitration.

15.2 **Entire Agreement and Order of Precedence.** This Agreement, applicable Issuance Records, and expressly incorporated terms comprise the SDK agreement. Separate Player, system, support, and institutional agreements retain their own scope. Issuance Records or separate agreements modify these terms only to the extent expressly stated; an expressly agreed institutional order of precedence is respected. Component terms have the precedence in Section 10.1.

15.3 **Notices.** Notices to VOTANIC may be emailed to enquiry@votanic.com. VOTANIC may use the licence contact or suitable product notice; material breach or termination notices must use a reasonably reliable direct channel, not merely a website posting.

15.4 **Assignment.** Licence assignment requires VOTANIC consent; permitted application distribution is not assignment. VOTANIC may assign to an affiliate or business successor subject to continuing obligations and mandatory law.

15.5 **Force Majeure, Severability, and Waiver.** Events beyond reasonable control excuse resulting delay or failure, not payments already due; affected parties must reasonably notify and mitigate. Invalid provisions are severed to the necessary extent; non-enforcement is not waiver.

15.6 **No Agency or Partnership.** No agency, partnership, joint venture, or employment relationship is created. Neither party may bind the other without authorization.

15.7 **Third-Party Enforcement.** VOTANIC's officers, employees, and agents protected by Section 12.4 may enforce that indemnity under the Contracts (Rights of Third Parties) Ordinance (Cap. 623). Their enforcement rights are limited to Section 12.4 and are subject to its scope, exclusions, and limitations, the claims procedure in Section 12.5, and the governing-law and arbitration provisions in Section 15.1 for disputes concerning that enforcement. No loss may be recovered more than once through claims by VOTANIC or any protected person. Subject to applicable law, VOTANIC and the Licensee may by agreement vary or rescind this Agreement without the consent of those protected persons. No other third party has a right to enforce this Agreement under that Ordinance. Separate runtime entitlements and rights arising independently under applicable law are unaffected.

15.8 **Language and Electronic Acceptance.** This Agreement is written in English; any translation is provided for convenience only, and the English version prevails if there is any inconsistency. You may accept this Agreement electronically, including by selecting "I accept" in the SDK's acceptance prompt, and electronic acceptance has the same effect as signing a written agreement. Where this Agreement

requires VOTANIC's written approval, authorization, or consent, an email from an authorized VOTANIC representative is sufficient.

15.9 **Export Control and Sanctions.** You must comply with all export-control, import, and sanctions laws applicable to the SDK, Developer Applications, and included third-party components, and must not use, export, or supply them to any person, destination, or end use prohibited by those laws. VOTANIC may suspend access under Section 13.6 where reasonably necessary to comply with such laws.